

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, MAY 27, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK, N.A. v. JOCELYN FIERROS
Case No. CL25-07159**

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed motion to deem requests for admission as admitted is GRANTED. Defendant JOCELYN FIERROS shall be deemed to have admitted all propounded Requests for Admission.

The court will process the lodged order after hearing forthwith.

**MAGALLON v. FONSECA
Case No. CU24-00413**

Motion to Enforce Settlement

TENTATIVE RULING:

The file reflects that Defendant FONSECA was served with the motion to enforce the settlement agreement at the house that is the subject of the partition action by mail on April 16, 2026.

On April 13, 2026, Defendant FONSECA appeared at the dismissal hearing heard by visiting Judge Hardcastle. In open court, the court informed Mr. Fonseca of the May 27, 2026, 9:00 hearing date and confirmed the date.

Plaintiff's unopposed motion to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6 is GRANTED. The proposed order lodged with the motion is consistent with the terms of the parties' settlement agreement and shall be adopted.

In the event the parties are unable to agree to a broker and submit names to the court as contemplated by the proposed order, the parties shall contact the Judicial Assistant for Department 8 to notify the Department of the submission. (The court does not read every submission at the time of filing and is only notified of an item requiring action when it is placed on calendar.) In the event appointment of an elisor is necessary, the court appoints Brian Taylor, Clerk of the Superior Court, or his delegate.

Costs and fees shall be sought by motion and memorandum.

JP MORGAN CHASE BANK v. MARIA F BAGARINO
Case No. CU25-06517

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an "appearance" via a stipulation which does not include Defendant's name or contact information in the caption, was filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant's contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court does note that the proof of service is mailed to the same location that personal service of the summons and complaint was originally made which gives rise to an inference of effective service, but absent a meaningful appearance in this action, personal service of the motion is required.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

IN THE MATTER OF PRESTIGE DEFAULT SERVICES, LLC
Case No. CU25-08421

Petition for the Distribution of Surplus Funds following Foreclosure

TENTATIVE RULING:

Parties to appear.

The petition in this matter was filed on September 12, 2025. No explanation is provided by trustee as to the significant delay in depositing funds that are the subject of the interpleader.

Case Management Conference One was heard on March 24, 2026. A number of possible claimants were present in the courtroom. Prestige Default Services LLC failed to appear. At the hearing the court confirmed that the surplus funds had not been deposited with the court. No ex parte request to deposit funds had been received by the court from trustee. The court issued an Order to Show Cause to Petitioner.

On April 7, 2026, the court received a deposit of \$62,083.39. This receipt triggered the clerk's office to provide written notice to identified claimants at the addresses provided by Petitioner.

Written notice to several claimants has been returned as undeliverable. Given Petitioner's unexplained delay, the court is concerned that information regarding claimants contact information became stale. Petitioner should update this search to determine accurate addresses for:

Bank of America
Anacorita Asprer
Lulian P Asprer

Court records reflect that the estate of Trifon Patolot Asprer has an active case pending in Solano County Superior Court (PR-25-00642). Albert Phillip Asprer has been designated the executor. He is represented by attorney Jeanne Serrano, Esq. Petitioner is to provide notice.

Additionally, the court will expect an explanation from trustee as to the delay and confirmation that the funds were in an interest bearing account during this unexplained 6 month delay. As the amount deposited is the same as the amount in the Petition, it appears that additional interest has not been properly credited.

The court understood that one or more claimant might be petitioning for the appointment of a successor trustee as the prior trustee Jocelyn Sharabiti is alleged to have abandoned the role. The trust is the proper recipient of any surplus funds after satisfaction of all liens.

If no proceedings are initiated to appoint a successor trustee, the court will be compelled to hold a hearing and claimants will be required to file written claims to the funds no later than 15 days prior to the hearing. Any person with notice of the duty to file a claim who fails to file a timely claim establishing entitlement to the surplus proceeds will be deemed to have abandoned his or her claim.

MICHAEL MERLONGHI v. MARY DELBROCCO
Case No. CU26-00553

Demurrer

TENTATIVE RULING

Defendant MARY DELBROCCO's demurrer directed to Plaintiff MICHAEL MERLONGHI's complaint filed on January 21, 2026, is overruled as moot. Plaintiff filed a first amended complaint ("1AC") on February 26, 2026, prior to the filing of the demurrer or any responsive pleading. (Code Civ. Proc., §§ 472, 1005, subd. (b).) It appears from the court's file the 1AC was personally served on Defendant and Plaintiff's counsel on March 2, 2026 prior to the filing of the demurrer on March 11, 2026.

A timely filed amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

The court confirms the case management conference scheduled for August 18, 2026. Updated case management conference statements shall be filed using Judicial Council Form CM 110 at least 15 days prior to the hearing.

FELIPE CRUZ HERNANDEZ v. HARPREET SINGH
Case No. FCS057281

Petitions to Approve Minor's Compromise

TENTATIVE RULING:

No appearances are necessary.

The petition to approve the minor's compromise is approved. The court appreciates that the compromise was the result of a binding arbitration in which multiple parties appeared and resolved competing claims towards the same pot of insurance proceeds. The petition is solely to approve the costs and fees from the funds that were awarded in binding arbitration to the minor.

The court will process the lodged order forthwith.

Deon Issac, J.A., T.A. and N.C. et al. v. Northbay Healthcare Corporation
Case No. FCS059353

Plaintiff's Motion for Final Approval of Class Action Settlement
Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

The motion for final approval of a class action settlement is DENIED WITHOUT PREJUDICE.

The court cannot proceed to final approval without resolving the issue of the absentee named party representative. On March 19, 2026, this matter was called at 10:00 a.m. after there was no appearances by counsel at the hearing scheduled at 9 am. At the hearing, counsel was advised that all named law firms had to move to withdraw and an amended motion had to be filed and served on the named party representative. At a minimum, if there has been a loss of contact, a request for service by publication could be appropriate. Plaintiff was tasked with providing notice of the OSC and the file does not reflect that such notice was provided.

The file reflects that nothing has been filed by Plaintiff's counsel since the last hearing on March 19, 2026.

The Order to Show Cause to DEON ISSAC is discharged due to the failure by Plaintiff's counsel to serve.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002